

They Can Put Someone Else In Charge Of Your Money

What the new AISH/ADAP rules really say — verified against the regulation

The Alberta Disability System Breakdown · St. Albert, Alberta · August 2026

The short version: Under the new regulation, a director can appoint a “financial administrator” to manage all or part of your benefit **without asking you first**. This is real. It is written into the law. Here is exactly what it says, what we still do not know, and what you can do about it.

Where this came from

A community member flagged a write-up about the new regulation’s power to appoint a financial administrator without the client’s consent. We do not repeat advocacy pieces as fact, so we went to the regulation itself and checked. The core claim holds up, word for word.

What the regulation says

This is AR 96/2026, the AISH General Regulation, in force July 2, 2026, section 17:

*“17(1) A director may appoint a financial administrator to administer all or part of a client’s benefit **without the client’s consent** in accordance with the process and criteria determined by the Minister under subsection (2). (2) The Minister may determine the process and criteria by which a director may appoint a financial administrator to administer all or part of a client’s benefit without the client’s consent.”*

So the power is not a rumour. A director can hand control of some or all of your monthly benefit to another person, and the regulation says plainly they can do it without your consent.

The part that should worry you most

Look at subsection (2) again. The regulation grants the power, but it does not set out the rules for using it. The process and criteria, who qualifies to be an administrator, when a director is allowed to appoint one, what has to happen first, how you are notified, are all left to be determined by the Minister.

That means the limits are set by a Ministerial order that is not published in the regulation. This is the same gap we keep finding: the safeguard is not in the law you can look up, it lives in an order the public cannot easily read. So the piece that called this power “unrestricted” overstates it slightly, there are supposed to be criteria, but the practical problem is real: from where you sit, those criteria are not public, so you cannot hold a decision against a standard you are allowed to see.

What the administrator is supposed to do — section 18

“18(2) A financial administrator must (a) act in the client’s best interests, (b) maintain records of receipts and disbursements of the client’s benefits, and (c) provide, as required by a director, any information the director considers necessary...”

Section 18(1) says the administrator has the same obligations under the Act as the client. So they must act in your best interests and keep records, but you are not the one they answer to. They report to the director.

Can you undo it? — section 19

This is the sharp edge. Under section 19, an appointment can be revoked by the client only if the financial administrator was appointed by consent and the client provides written notice to a director.

Read that carefully: you can cancel it yourself only if you agreed to it in the first place. If it was imposed without your consent, you cannot simply revoke it the same way. That appointment ends when a director decides it is no longer needed, not when you do.

Bottom line

- The power to appoint someone to control your benefit **without your consent** is real, and it is in AR 96/2026, section 17. Confirmed against the regulation, not just claimed.
- The rules for when they can use it are set by an **unpublished Ministerial order**, so the safeguards are not something you can look up.
- If it is imposed without your consent, **you cannot cancel it yourself** the way you could if you had agreed to it.

What you can do right now

- **If you are told a financial administrator is being appointed, ask for it in writing:** who, why, over what portion of your benefit, and under what authority. Get the decision on paper.
- **Ask whether it is being done by consent or without it.** That one word changes whether you can revoke it yourself later (s.19).
- **Ask for the process and criteria** the director is relying on (s.17(2)). If it is a Ministerial order, ask for a copy or a citation.
- **Keep every letter and every date.** If you disagree, a written record is what a review or an information request is built on.
- **If your own money is being redirected and you were not consulted, tell us,** so we can track how often, and how, this power is being used.

Verified August 31, 2026 against AR 96/2026 (King’s Printer consolidation), sections 17 to 19. Effect, not motive. This is information, not legal advice. If a financial administrator is being appointed over your benefit and you want to challenge it, get advice on your specific situation.

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